

		Finally, Defendants move for sanctions pursuant to Code of Civil Procedure section 177.5, which provides the Court may impose monetary sanctions for a violation of a lawful court order without good cause or substantial justification. As discussed above, the Court does not find there has been a violation of a Court order.
3	23-01352268 <i>Wilkins vs. Los Alamitos Medical Center, Inc.</i>	Motion for Summary Judgment and/or Adjudication Defendant Sheri Palajwala, MD’s Motion for Summary Judgment is CONTINUED to ____. The parties are ORDERED to meet and confer within 10 days of this order to schedule Dr. Lieberman’s deposition within 45 days. The deposition shall be limited only the foundation of Dr. Lieberman’s opinion regarding the reasonable degree of medical probability of the failure to use closed-loop communication had on Decedent’s death. Where there is a legitimate question regarding the foundation of an expert witness’ declaration in support of an opposition to a motion for summary judgment, the court must allow the defendant an opportunity to depose the expert regarding that issue. (<i>St. Mary Medical Center v. Superior Court</i> (1996) 50 Cal.App.4th 1531, 1540.) Here, Dr. Palajwala claims there is a question as to the foundation of Dr. Lieberman’s declaration. Dr. Lieberman opines “the standard of care required closed-loop communication. In this setting, closed-loop communication means that the neurosurgeon directly communicates the time sensitive change in treatment status to the responsible hospitalist, attending physician, or another provider who is accepting responsibility for the treatment decision; the receiving provider acknowledges and understands the recommendation; and responsibility for the next action is confirmed.” (Lieberman Decl., ¶ 12.) He opines Dr. Palajwala’s “failure to use closed-loop communication was a substantial factor in the prolonged delay in treatment. Had she directly communicated her clearance and confirmed receipt on October 18, 2022 the physician managing the DVT and pulmonary emboli would more likely than not have been informed that the neurosurgical contraindication had been removed and would have been required to promptly initiate anticoagulation or affirmatively continue the alternative mechanical-protection plan. Instead, Mr. Wilkins remained for approximately twenty-three additional hours without anticoagulation and without an IVC filter.” (Lieberman Decl., ¶ 16.) Dr. Lieberman did not consider Dr. Nashed’s deposition, where he states he learned of the order clearing decedent for anticoagulants in the late morning of October 18. (Defendant’s Ex. 4.) Thus, Lieberman is claiming the failure to use closed-loop communication caused the 23 hour delay, however, if Dr. Nashed knew of the cancellation, this calls into question causation of the failure to use closed-loop communication. Therefore, there is a legitimate question regarding the foundation of Dr. Lieberman’s opinion regarding the reasonable degree of medical probability of the failure to use closed-loop communication had on Decedent’s death.